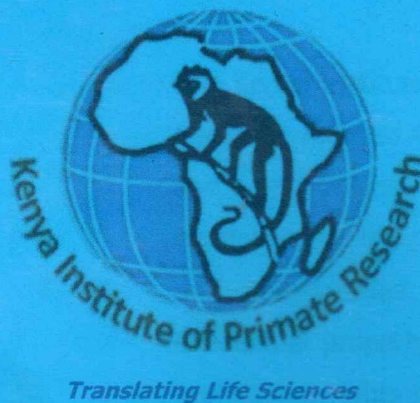




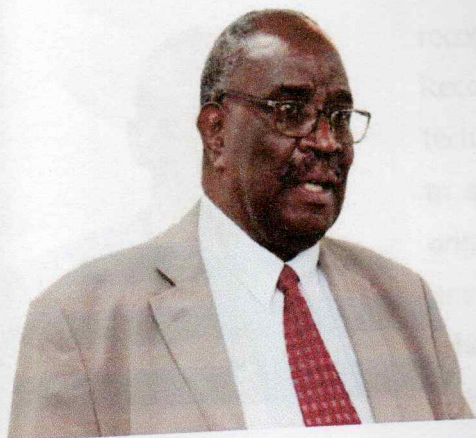
Kenya Institute of Primate Research

POLICY DOCUMENT

Intellectual Property Policy

Policy No.	Issue Number	Issue Date	Revision Status	Revision Date
POL/KIPRE/DCBPGM/001	Version 01	May 2024	-	-

FOREWORD



The Kenya Institute of Primate Research (KIPRE), hereafter referred to as "the Institute" recognises and encourages the individual effort and creativities on the part of its, employees, students and collaborators leading to the creation of intellectual property. It is the Institutes' intent to protect the rights of the individual, the Institute, and any collaborating entity, and to effect reasonable and appropriate sharing of revenues in

the event these creations have commercial value.

In pursuit of this mandate, KIPRE recognises the novel role that research, innovation, inventions, creative works, and other intellectual activities play in national and global socio-economic development. As such, KIPRE has developed an Intellectual Property (IP) policy to govern ownership, protection, disclosure, and use of IP rights by KIPRE and its internal and external stakeholders. This policy provides a framework for a standardised and coordinated approach for the generation, use, commercialisation and management of IP for socio-economic development.

SIGNED:

Josephat Mulimba

Date: 10 day of MAY 2024

Professor Josephat Mulimba, PhD, FRSM
Chairman, Board of Directors



PREFACE

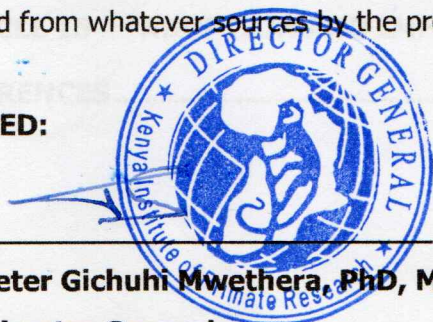


The Kenya Institute of Primate Research (KIPRE) is a recognised center of excellence in biomedical research. Recognizing the need to ensure that any knowledge and technology ensuing from research activities is made available to society, there is the need to encourage innovation and original research and other intellectual activities performed by any person working under the auspices of the Institution, whose independently conceived work is aimed at providing new frontiers in knowledge. To encourage the development

and maximum accessibility of discoveries it may occasionally require the obtaining of intellectual property rights and that such rights have the potential to result in benefits to both the government and the citizens of Kenya and to the research programmes of KIPRE. KIPRE herewith adopts the Intellectual Property Policy on all matters relating to the management of inventions, discoveries and their associated intellectual property rights. It is anticipated that this policy will serve as an effective tool in guiding future management of intellectual property and related issues at the Institution. This policy governs the generation, protection, utilisation, and commercialization of intellectual assets. In addition, it will foster a conducive environment for invention, innovation, and creation of IP assets as well as provide guidelines for equitable distribution of benefits and incentives to the stakeholders.

This Intellectual Property Policy is premised on Article 40(5) of the Constitution of Kenya 2010, which requires the government to support, promote and protect the intellectual property rights of the people of Kenya. It is also based on other national intellectual property legislations as well as international intellectual property treaties and conventions to which Kenya is a signatory. The Institute therefore has the obligation to protect intellectual property emerging from research funded from whatever sources by the prompt filing of appropriate patent applications.

SIGNED:



Date: 10th day of MAY 2024

Dr. Peter Gichuhi Mwethera, PhD, MBS
Ag. Director General

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ABBREVIATIONS/ACRONYMS

CE	Cultural Expressions
COC	Conflict of Commitment
COI	Conflict of Interest
GR	Genetic Resources
IP	Intellectual Property
IPRs	Intellectual Property Rights
IPC	Intellectual Property Committee
IPMO	Intellectual Property Management Office
MAT	Mutually Agreed Terms
MTA	Material Transfer Agreement
NDA	Non-Disclosure Agreement
KIPRE	Kenya Institute of Primate Research also referred to as the Institution
OERs	Open Educational Resources
PIC	Prior Informed Consent
SOPs	Standard Operating Procedures
TK	Traditional Knowledge
TK & CE	Traditional Knowledge & Cultural Expressions
WIPO	World Intellectual Property Organisation

DEFINITION OF TERMS

The following terms shall have the meanings assigned to them, unless otherwise stated.

Appointment: A formal agreement for a visitor at the Institution, which is a prerequisite to participate in or conduct research, scholarship, creative work, or teaching at the Institution.

Author: Any person to whom this Policy is applicable, who individually or jointly with others makes a design, a mark or copyrightable work and who meets the criteria for authorship under the IP laws.

Background IP: Any pre-existing IP created before the execution of any research project, or prior to a creator becoming subject to this IP Policy, by virtue of Appointment in the case of a Visitor, employment contract in the case of a staff member, or registration in the case of a student.

Commercialisation Entity: A company that has access to the IP of the Institution, through any one or more of the available Commercialisation modes, to produce new products, processes, or services. This can be a spin-off or start-up.

Commercialisation: Any form of utilisation of IP intended to generate value, which may be in the form of a marketable product, process or service, commercial returns, or other benefit to society.

Conflict of Commitment: Any situation in which an individual Staff Member's or Visitor's primary professional loyalty is not to the Institution because the time devoted to outside activities adversely affects their capacity to meet their responsibilities as set out in their employment contract or appointment, respectively. This refers to a situation in which a staff engages in an outside professional activity paid or unpaid that involves a commitment of time that may interfere or appear to interfere with the fulfillment of the staff's obligations to the organisation.

Conflict of Interest: Any situation in which real or perceived interests of a Staff Member, Visitor or Student may run counter to the interests of the Institution or negatively affect their employment or duties.

Contract Research: Means KIPRE being contracted by another entity to undertake research.

Copyright: Is a legal term describing rights given to creators for their literary and artistic works. These include literary novels, poems, plays, reference works, computer programmes, databases, films, musical compositions and choreography, artistic works such as paintings, drawings, photographs, sculpture; architectures; map, multimedia creations and technical drawings. This will also include KIPRE collections such as photographs, archival objects, images, paintings,

artistic works, molds and casts, works of sculpture, carvings, lithographs, audio-visual works, amongst others.

Course Materials: All materials used in, or in connection with, and for the purpose of, teaching an education course through the provision of lectures, tutorials, seminars, workshops, field or laboratory classes, assessments, practicum and other teaching activities conducted by the Institution, and all IP in such materials. Course Materials include many different forms of IP, such as IP in paper-based material, digital media, web-based content, broadcasts, video and audio materials, and software.

Creator: Any person to whom this Policy is applicable, who creates, conceives, reduces to practice, authors, or otherwise makes a substantive intellectual contribution to the creation of IP and who meets the definition of 'inventor', 'author' or 'breeder' as generally implied in the IP laws.

Disclosure: Is the written submission to Intellectual Property Office on standard invention/innovative Disclosure Forms, the description of any invention/innovation that an inventor/innovator believes he/she has made.

Employer: Means the Kenya Institute of Primate Research.

Enabler: Any assistants, technicians, and other individuals who have indirectly contributed to the creation of IP by Creators - and as such may not be listed themselves as an author or inventor in terms of statutory Intellectual Property Rights (IPRs) - mainly through the execution of standard tasks or following through on specific instructions, but without whose practical contribution the Commercialisation would not have been possible.

External Stakeholders: External stakeholders are those who do not directly work with KIPRE but are affected somehow by the actions and outcomes of the Institution such as students, research affiliates, collaborators, funders, attachees, fellows, volunteers, interns, visiting researchers and other partners.

Foreground IP: IP arising from a Research Contract or Agreement.

Genetic Resources: These are microorganisms, plant and animal material including indigenous seeds, genetic plant varieties and traditional animal breeds that contain functional hereditary units and whose management shall also be subject of other relevant legislations.

Gross IP Revenue: All revenue received by the Institution on Commercialisation of Institutional IP before any deductions.

Holder: Recognized individual or organisation within communities in whom the custody or protection of traditional knowledge and cultural expressions are entrusted in accordance with the customary law and practices of that community.

Industrial Design: The overall appearance of a product resulting from one or more visual features of the shape, configuration, pattern, or ornamentation of a product.

Innovation: These are utility models, technological innovations, and industrial designs and any other non-patentable creations or improvements that may be deemed as deserving specified intellectual property rights.

Innovator: A person who introduces new methods, ideas, or products.

Institute Resource: Shall include funds, time, office, laboratories, equipment, facilities, or other resources belonging to Kenya Institute of Primate Research.

Institution IP: IP owned or co-owned by the Institution.

Institution: Kenya Institute of Primate Research.

Intellectual Property: Means creations of the human mind includes patents, utility models, industrial designs, trademarks, geographical indications, layout designs, trade secrets copyright and plant breeder's rights, genetic resources and their derivatives and progeny.

Intellectual Property Committee: The body within the Institution which is responsible for overseeing the drafting, implementation, monitoring, and evolution of the Policy, and for providing strategic oversight of the IPMO.

Intellectual Property Rights: The proprietary rights that may be granted for an invention, mark, design, plant variety, or other type of IP, shall the statutory requirements for protection be met to result in a patent, trademark, registered design or plant breeders' right, respectively.

Internal Stakeholder: Internal stakeholders are staff employed by KIPRE.

Invention: A new and useful art (whether producing a physical effect or not), process, machine, manufacture, or composition of matter which is not obvious, or any new and useful improvement thereof which is not obvious, capable of being used or applied in trade or industry and includes an alleged invention.

Inventor: The person who devises the invention and includes the legal representative of the inventor.

IP Disclosure Form: The form to be completed by Creators and submitted to IPMO to document their creation.

IP Expenses: All expenses incurred by the Institution in the management and Commercialisation of IP for which Gross IP Revenue has been received.

IP Management Office The administrative unit responsible for day-to-day management of all IP-related activities of the Institution.

Know-How: Refers to the actual human technical skills derived from experience in working on a certain technology. It may or may not be part of a trade secret. Licensing of most new technologies work best when accompanied by transfer of know-how either through training, manuals, or secondment of personnel to the licensor until the licensor's personnel can optimally utilise the invention.

License: A permission, accorded by a competent authority, conferring the right to do some act which without such authorization would be illegal.

Net Revenue: Means the remaining proceeds after deducting all direct costs including tax, IP protection and licensing costs.

Non-Fungible Tokens: Non-Fungible Tokens (NFTs) are cryptographic assets on a block chain with unique identification codes and metadata that distinguish them from each other.

KIPRE Research Fund: Funds set aside for purposes of promoting research at KIPRE

KIPRE Stakeholders: Includes both internal and external stakeholders.

Owner: Means local and traditional communities, and recognised individuals or organisations within such communities in whom the custody or protection of traditional knowledge and cultural expressions are entrusted in accordance with the customary law and practices of that community.

Patent: Is an exclusive right granted for an invention, which is a product or a process that provides a new way of doing something or offers a new innovative and useful technical solution to a problem in industry.

Plant Variety: A plant grouping within a single botanical taxon of the lowest known rank, defined by the expression of the characteristics resulting from a given genotype or combination of genotypes distinguished from any other plant grouping by the expression of at least one of the said characteristics and considered as a unit with regard to its suitability for being propagated unchanged.

Policy: Refers to KIPRE's Intellectual Property Policy.

Public Disclosure: The communication of information, relating to IP, to external parties. Public Disclosure includes, but is not limited to, disclosure in written or oral form; communication by email; posting on a web blog; disclosure in a news report, press release or interview; publication in a journal, abstract, poster, or report; presentation at a conference; examination of a thesis; demonstration of an Invention at a trade show; or the industrial application of an Invention.

Public Domain: The freely accessible public realm in which works that are not protected by IPRs, either because the rights have been forfeited or because the rights have expired, are

thereby held by the public at large and available for all to use without permission from the Creator or owner.

Relevant Authority: The person at the Institution who has the ultimate decision-making authority on behalf of the institution.

Research Contract: Any type of agreement between the Institution and an external party or research sponsor, concerning research, which could result in IP being created at the Institution. This shall include, but is not limited to, all sponsorships, donorships and collaborations with the external party or research sponsor.

Research Project: Any project that forms the basis of research undertaken by the Institution and includes projects undertaken by a student, under the supervision of a Staff Member or a Visitor, as part of a research degree programme.

Research Sponsors: Any individual or organisation funding or giving any form of support to a research project, programme or exhibitions which could be artistic or research in nature

Research: The investigation undertaken to discover new facts and examining a problem to get additional information. It comprises three activities: basic research, applied research and experimental development.

Scholarly Works: All copyright works which are the outputs of research, creative works and academia by staff members, students or visitors. Scholarly Works includes books; chapters in books; articles; monographs; theses and dissertations.

Staff Member: Any person who is under a contract of employment with the KIPRE including academic, research, technical, administrative, and adjunct staff, whether full-time or part-time or on a temporary basis.

Student: Any person registered for a course in a grouped accredited academic institution.

Substantial Use: Extensive and unreimbursed use of the Institution's resources which include but are not limited to facilities, equipment, human resources, or funds. Not included is routine use of libraries and/or office space.

Tangible Research Property: Examples of Tangible Research Property may include, but are not limited to integrated circuit chips, computer software, computer databases, biological materials, engineering prototypes, engineering drawings, and other property, which can be physically distributed. Tangible Research Property may often have associated intangible property rights.

Trade Secrets: Comprise of confidential scientific, technical, business, commercial and financial information not publicly known data or information used in research, business, commerce, or

industry. The Trade Secrets will make the KIPRE enterprises have a competitive edge over others. This type of protection can last as long as the secret is maintained.

Trademark: A trademark is a distinctive sign that identifies certain goods or services as those produced or provided by a specific person or enterprise.

Traditional Knowledge: Means any knowledge: (a) originating from an individual, local or traditional community that is the result of intellectual activity and insight in a traditional context, including know-how, skills, innovations, practices and learning, embodied in the traditional lifestyle of a community; or (b) contained in the codified knowledge systems passed on from one generation to another including agricultural, environmental or medical knowledge, knowledge associated with genetic resources or other components of biological diversity, and know-how of traditional architecture, construction technologies, designs, marks and indications.

Utility model: Means any form, configuration or disposition of element of some appliance, utensil, tool, electrical and electronic circuitry, instrument, handicraft mechanism or other object or any part of the same allowing a better or different functioning, use, or manufacture of the subject matter or that gives some utility, advantage, environmental benefit, saving or technical effect not available in Kenya before and includes micro-organisms or other self-replicable material, products of genetic resources, herbal as well as nutritional formulations which give new effects.

Visiting Researchers: Visiting scientists and any other individuals participating in research, teaching, training or making significant use of KIPRE's facilities, funds or other resources.

Visitor: Any person who is not a Staff Member and engages in work at the Institution leading to IP generation, including visiting professors, adjunct and conjoint professors, teachers, students, researchers, affiliates, scholars and volunteers.

ARTICLE 1: INTRODUCTION

The Kenya Institute of Primate Research (KIPRE), whose mandate is pre-clinical biomedical research, is a semi-autonomous government agency established under the Legal Notice No. 273 of 2017 in the Science, Technology and Innovation Act No. 28 of 2013. KIPRE, operates under the Ministry of Health, State Department for Public Health and Professional Standards through the Presidential Executive order No. 1 of January, 2023.

1.1 Vision

To be a global centre of excellence in innovation, basic, pre-clinical, biomedical research and non-human primate conservation

1.2 Mission

To improve human health and biodiversity through advances in basic and pre-clinical, biomedical research and non-human primate conservation.

1.3 Core Values

The core values include: Research integrity, Professionalism, Good Corporate Governance, Equity and Customer Focus

1.4 KIPRE Functions

The functions are to:

- (a) Conduct basic, pre-clinical and translational research using non-human primates and other experimental animals in liaison with the relevant government agencies;
- (b) Establish an incubation centre linking research and industry in the health products value chain;
- (c) Contribute to early warning systems for emerging and reemerging diseases;
- (d) Establish and operate a national breeding colony of nonhuman primates and other experimental laboratory animals for research purposes;
- (e) Provide national in-vitro fertilization services for endangered wildlife of Kenya in liaison with relevant Government agencies;
- (f) Undertake studies in non-human primate conservation biology and Primatology;
- (g) Create and maintain a national non-human primate database on census, research affiliations, and geo-spatial distribution of non-human and related zoonotic diseases;
- (h) Serve as a national research centre for venom and anti-venom including snake bite

disease;

- (i) Undertake basic and pre-clinical research on reproductive health, infectious and non-communicable diseases using non-human primates;
- (j) Develop and characterize both non-human primate and other experimental animal models for priority diseases in Kenya;
- (k) Undertake research in Human African Trypanosomiasis disease;
- (l) Undertake capacity building in animal welfare, ethical use and care of non-human primates and other experimental animals in laboratory settings; and
- (m) Perform any other function which is incidental to the performance of any of the foregoing functions.

ARTICLE 2: POLICY STATEMENT, PURPOSE, SCOPE AND OBJECTIVES

In the course of discharging its mandate, Intellectual Property (IP) is generated and requires protection and clear guidelines on its management. Cognisant of the role IP management plays in enhancing intellectual assets, there is need for KIPRE to have an IP policy which provides an institutional framework for the management of all forms of IP.

2.1 Policy Statement

The Kenya Institute of Primate Research is committed to ensuring that IP generated from its activities and in support of its functions as set out in the legal notice 273 of 2017, anchored on Science, Technology and Innovation act 28 of 2013, and is used for the benefit of the organisation, the Creators, Researchers, Innovators, and most importantly the society.

2.2 Purpose

The purpose of this policy is to provide a framework for a standardised and coordinated approach for the generation, use, commercialisation and management of IP for socio-economic development.

2.3 Scope of the Policy

2.3.1 Intellectual property (IP): This Policy applies to all IP generated in KIPRE including but not limited to: Patents; Trade Marks; Copyright and Related Rights; Industrial Designs; Utility Models; Seeds and New Plant Varieties; Trade Secrets and Know How; Geographical Indications; Genetic Resources and their derivatives and Traditional Knowledge; Tangible Research Property; Non-Fungible Tokens and Domain Names.

- 2.3.2 **Background IP:** This policy applies to all Background IP that shall be declared to KIPRE prior to employment and appointments including that of students, research affiliates, collaborators, funders, attachees, fellows, volunteers, interns, visiting researchers and other partners. Background IP of the external parties belongs to such party or sponsor. Each Party shall, on request, grant the other(s) a license on fair and reasonable terms, to use any Background IP that is required for the exploitation of the Foreground IP Property.
- 2.3.3 **Applicability:** This Policy applies to all KIPRE staff, including but not limited to administrators, scientists, researchers, and technicians. The policy also applies to students, research affiliates, collaborators, funders, attachees, fellows, volunteers, interns, visiting researchers, other partners and any other persons who generate IP through research, development projects and creative works. Rights and obligations under this Policy shall survive any termination of employment, or appointment at the Institution i.e., if an IP was generated by staff during their working tenure and he or she leaves, the same shall benefit from the benefits accruing from this IP even after termination of employment. Conversely, if a staff generates IP after termination of employment, he will not be bound by this Policy.
- 2.3.4 **Binding Effect of the Policy** This Policy, once adopted by the KIPRE Board of Directors, constitutes an agreement that is binding on the institution, staff members, students, research affiliates, collaborators, funders, attachees, fellows, volunteers, interns, visiting researchers and other partners on the following grounds:
- a) Staff Members: The KIPRE shall ensure that any employment contract or other agreement establishing any type of employment relationship between the Institution and Staff Members includes a provision subjecting Staff Members to the provision of this Policy.
 - b) Students Participating in a Research Project: Before beginning the project, the KIPRE shall ensure that Students participating in a Research Projects sign an agreement stating that they have read and will comply with the provisions of this Policy.
 - c) Research Affiliates, Collaborators, Funders, Attachees, Fellows, Volunteers, Interns, Visiting Researchers and Other Partners: Before beginning any activity at the Institution, the KIPRE shall ensure that research affiliates, collaborators, funders, attachees, fellows, volunteers, interns, visiting researchers and other partners sign an Appointment or Collaborative Agreement. Such agreement will

bind them to the terms of this Policy and will include a reference to it, a copy of which will be provided to them.

2.3.5 Access to the Policy: This Policy shall be available on the Institution's Intranet. In addition, this Policy shall be referenced in the terms and conditions of employment, research affiliation agreements and partnership agreements or their equivalent.

2.4 Objectives of the Policy

This IP Policy aims to achieve the following objectives:

- a) To establish a framework to govern disclosure, ownership, protection, and utilisation of IP rights.
- b) To foster creativity, research, innovation, and invention
- c) To enhance commercialisation and transfer of intellectual assets.
- d) To provide a benefit sharing framework for IP generated.

ARTICLE 3: ADMINISTRATION AND IMPLEMENTATION

3.1 Establishment of Intellectual Property Management Office and Intellectual Property Committee.

For the effective implementation of this Policy, KIPRE shall:

- a) Establish an Intellectual Property Management Office (IPMO) under the Director General's Office.
- b) Establish an Intellectual Property Committee (IPC) to advise on IP management within the framework of this policy and in accordance with applicable laws and regulations.

3.2 Functions of IPMO

The IPMO shall perform the following functions:

- i. Create awareness amongst staff, partners, and other stakeholders regarding IP management.
- ii. Assess ongoing research project outputs for potential IP.
- iii. Evaluate the commercial potential of intellectual assets.
- iv. Coordinate IP valuation in consultation with experts as and when necessary.
- v. Facilitate technology management and transfer.
- vi. Lead IP contract negotiations

- vii. Undertake continuous IP audit.
- viii. Undertake IP asset portfolio management by establishing and maintaining a database to record and monitor the Institution's IP in an appropriate and detailed manner.
- ix. Periodically report to management on the implementation of this policy.
- x. Develop Standard Operating Procedures (SOPs) and other IP management documents including Prior Informed Consent (PIC), Mutually Agreed Terms (MAT), Material Transfer Agreement (MTA) and Non-Disclosure Agreement (NDA).
- xi. Liaise with IP offices, partners, and other stakeholders for the purposes of effective IP management.
- xii. Identify potential IP areas within KIPRE's collections that require possible restrictions or prohibitions and advice management.
- xiii. The head of the IPMO will be the secretary to the IPC.

3.3 Composition and Functions of Intellectual Property Committee

The KIPRE shall establish an IPC to oversee the implementation and evaluation of this Policy and provide strategic guidance to the Intellectual Property Management Office (IPMO)

3.3.1 Composition of IPC

The IPC shall consist of seven to nine members who shall be senior management staff and appointed by the Director General from the following directorates:

- a) Directorate of Research and Product Development
- b) Directorate of Animal Science, Welfare and Ethics
- c) Directorate of Capacity Building, Partnership and Grants Management
- d) Corporation Secretary and Legal Service Office
- e) Financial Controller's Office
- f) IPMO (secretary to IPC)

3.3.2 The IPC shall be chaired by an officer at grade KIP2.

3.3.3 Where the IPC is meeting for discussion on matters pertaining to a particular IP, it may invite persons with interest relating to the IP in discussion.

3.4 The Functions of the Intellectual Property Committee shall include:

- i. Review of SOPs and any other issues related to IP management, including but not limited to disclosures, licensing, agreements, IP valuation and IP audit.

- ii. Make recommendations on IP management and commercialisation strategy for all intellectual assets.
- iii. To hear and mediate disputes on IP and related matters.
- iv. Advice on capacity building, IP and related matters within the institution.
- v. Make recommendations on the review and / or amendment of this IP Policy.

3.5 Guiding Principles for IP Valuation

In valuing IP under clause 3.2 (iv), the IPMO office shall be guided by the following principles:

- i. Valuation of IP shall not be used as the sole or principal justification for commercialisation decisions concerning its IP.
- ii. Justifications for commercialisation of IP shall include reference to the public benefit and utility of that IP.
- iii. The valuing of IP held by KIPRE shall be in accordance with applicable methods and standards consistent with the purposes for which it is being valued.

ARTICLE 4: OWNERSHIP OF IP AND RIGHTS OF USE

This article provides guidelines for ownership and rights on use of IP.

4.1 IP Created by Staff Members

4.1.1 Institutional Ownership

Except or otherwise as provided by the law or in this policy, any intellectual assets which result from research work carried out by, or under the direction of KIPRE, or from funds under the control of, or administered by the KIPRE, or which come as a result of any staff's duties with the KIPRE, or which have been developed in whole or part by the utilisation of KIPRE's resources or facilities, shall belong to KIPRE.

4.1.2 Staff Member Ownership

Staff members will own/co-own the IP they have created when:

- a) Such IP is outside the course and scope of their employment and without substantial use of KIPRE's resources; or
- b) Such IP vests in scholarly works as stipulated in this policy.
- c) Other IPRs, as required by law, or for which KIPRE cannot or does not wish to claim ownership and has communicated such in writing.

4.1.3 IP Emanating from Research Contracts

In the absence of provisions to the contrary in any law or in this policy, the terms of the Contract will regulate ownership of IP created by Staff in the course of a project that forms part of a contract.

4.1.4 Appointment of Staff Members at another Institution

It is the responsibility of each Staff Member that holds an honorary or other academic or research appointment at another institution (Host Institution) to bring to the attention of the Host Institution, his/her obligations in terms of this Policy, prior to the tenure at the Host Institution. To the extent that the Host Institution's IP Policy makes a claim on IP created by the Staff Member pursuant to such appointment, the Staff Member shall ensure that the Host Institution negotiates a suitable IP arrangement with the Institution.

4.2 IP Generated by Students, Interns and Attachees

4.2.1 Students, Interns and Attachees Ownership

- a) They shall own any intellectual property (including theses, dissertations, and other Scholarly Works) that they invent, innovate, or create in the course of their research unless the named individuals have:
 - (i) received financial support from KIPRE in the form of stipends or grant funds for the research in which case the ownership shall be negotiable
 - (ii) made substantial use of KIPRE resources in connection with the research
 - (iii) been funded by a sponsor under a grant or sponsored research agreement.
- b) IPMO may, upon agreement, provide commercialisation services to Students for their IP. In this event, Students will be required to assign their IP to the Institution and will be afforded the same rights and obligations as Staff Members under this Policy

4.2.2 IP Emanating from Research Contracts

The terms of the Research Contract shall regulate the ownership of IP created by a Student in the course of such Research Contract.

4.2.3 Institution Ownership

IP emanating from a Student's Research Project shall be owned by the Institution if the IP is created by making substantial use of KIPRE's resources and if the research carried out by the student forms part of KIPRE's directed or funded research work.

4.2.4 Institution Ownership Responsibilities

If the Institution is the owner of IP created by a Student under a Research Project or Research Contract, respectively, the KIPRE shall:

- a) provide the student with an explanation of the reasons for the assignment of IP rights to the Institution.
- b) advise the student to seek independent advice regarding the assignment.
- c) obtain a deed of assignment from the student for all IP rights emanating from the Student's Research Contract or Research Project, where relevant, in return for revenue sharing as provided for in this policy

4.2.5 Scholarships

If an external party grants scholarship to a student, ownership of the IP generated will be subject to prior negotiation and agreement made between the student, the KIPRE and the external party.

4.3 IP Created by Research Affiliates, Volunteers, Collaborators and Visiting Researchers

Ownership of IP generated by all above-named individuals will be subject to the terms of their appointment agreement / contract with the KIPRE prior to their tenure at the KIPRE.

4.4 Ownership Under Collaborative Research

When KIPRE is involved in collaborative research with another institution(s) or business entity, the IP shall be co-owned, and the distribution of royalties will be governed by a written contractual agreement between the parties prior to the commencement of the collaboration. Both institutions shall unless otherwise stated in the contractual agreement, contribute equally towards expenses related to acquiring IP Rights and Licensing.

4.5 Course Materials

4.5.1 Institution Ownership

The Institution will own the IP in Course Materials created by a staff member, visiting scholar/ visiting researcher, research affiliates under the direction of KIPRE, or KIPRE resources, or administered by the KIPRE, with the exclusion of Course Material that is created from or for Open Educational Resources.

4.5.2 Staff Members Ownership

Staff members will own/co-own the IP they have generated when such IP is outside the scope of their employment and without Substantial Use of KIPRE's resources.

4.5.3 **Approval by the Institution**

The Institution may provide prior written permission to the Creators of Course Materials to use the Course Materials created by them for teaching and research purposes at the Institution.

4.6. **Scholarly Works**

4.6.1 **Scholarly Works**

All Scholarly Works undertaken for or on behalf of the institution will be owned by the staff member/s subject to approval by the institution.

4.6.2 **Institutional Repository**

The creators shall submit a copy of the works to the institutional repository to be used for academic purposes royalty free.

4.7 **Moral Rights**

4.7.1 **Recognition.** The Institution undertakes to respect and protect the moral rights which copyright law confers on Authors of copyright works.

4.7.2 **Rights Granted.** The Institution acknowledges that moral rights vest in Authors of copyright works irrespective of the copyright ownership thereof and include:

- a) the right of attribution of authorship in respect of the copyright work.
- b) the right not to have authorship of the copyright works falsely attributed;
and
- c) the right of integrity of authorship in respect of the copyright works.

4.7.3 **No Waiver.** The Institution will not require Staff Members, Students or Visitors to waive their moral rights as a condition of employment, enrolment, appointment, or funding.

4.8 **Public Domain**

4.8.1 **Public Domain.** Institution IP forms part of the Public Domain in the following circumstances:

- a) if a Research Contract provides that the Research results be placed into the Public Domain; or
- b) if Staff Members or Visitors made use of open educational resources (OERs) or resources licensed through Open Source or Creative Commons Licenses and the licensing conditions require release of derivatives into the Public

Domain.4.8.2 **Release into the Public Domain.** The Institution may release IP into the Public Domain in the following circumstances:

- a) where it is deemed to be in the public interest and in compliance with the applicable National Laws and regulations
- b) if the IP has low commercial or other development potential and low prospects of fostering the development of new products or services; or
- c) if deemed necessary by the Institution.

ARTICLE 5 DETERMINATIONS BY THE IPMO

5.1. Responsibility to Disclose IP

5.1.1. **Recording.** Creators shall keep appropriate records of their Research in accordance with the Institution's applicable policy procedures and make reasonable efforts to ensure that only those individuals within the Institution who have a need to have access to such records for the performance of their duties are granted such access.

5.1.2. **IP Disclosure.** Where a Creator identifies potential IP resulting from their Research or that of their team, they shall disclose such potential IP to IPMO promptly by means of an IP Disclosure Form.

5.1.3. **Complete Disclosure.** Creators shall provide the IPMO with complete and accurate information regarding the IP generated. The IPMO shall acknowledge the submission of the IP Disclosure Form and indicate the reference number and date of receipt.

5.2. Creatorship and Ownership

Creators shall, upon request, sign the appropriate legal documents provided by IPMO that attest to creatorship. Where there is more than one Creator, and there is a dispute as to the contribution to creatorship, IPMO shall in consultation with the Creators, assist in the determination of the percentage IP creatorship, failing which it shall be assumed that there was equal undivided contribution.

5.3. Determination as to IP Protection and Commercialisation

5.3.1. **Evaluation and Recommendation.** IPMO will analyse the information disclosed in the IP Disclosure Form and make appropriate recommendations.

5.3.2. **Decision to Protect/Commercialize.** The IPC will decide within sixty (60) days, whether or not it wishes to protect and/or commercialize the IP.

5.3.3. **Institution's Obligation to Notify Creators of its Decision.** Within no more than ninety (90) days IPMO will notify the Creators of the decision of whether the Institution will or will not pursue IP protection and commercialization of their IP Disclosure.

5.4. **Institution Elects not to Protect /Commercialize the IP**

5.4.3. **Written Notification.** If the Institution is unable to or decides not to protect or commercialize the Institution IP, it shall notify the relevant Creators of its decision in writing and in a timely manner.

5.4.4. **No Prejudice to IP Protection.** The Creator(s) shall receive the written notification in a timely manner that enables the relevant Creator(s) to take any formal steps to ensure the protection of IP, shall they so desire.

5.4.5. **Assignment.** If the Creator elects to take assignment of the IP, the Institution shall ensure that a deed of assignment is executed without delay.

5.4.6. **Terms and Conditions.** If the Institution assigns IP rights to the Creator, the assignment shall be subject to the following terms and conditions:

- a) that upon commercialisation, the Institution be compensated for any expenditure it may have incurred in connection with the protection and/or commercialisation of such IP; and
- b) that the Institution be granted a non-exclusive, royalty-free license to use the IP for research and teaching purposes.

ARTICLE 6: COMMERCIALISATION OF INTELLECTUAL PROPERTY

KIPRE will endeavour to support commercialisation of IP assets generated in the delivery of its mandate.

KIPRE reserves the right not to commercialise its IP if:

1. In the event the Institution decides not to pursue commercialisation, it will take steps to return/assign the IP rights to the creators/inventors/innovators, under mutually agreed terms:
 - a) there is no reasonable prospect of commercial success,
 - b) it is not deemed to be in the best interest of the Institution; or
 - c) it is not deemed to be in the public interest.

2. Where the Institution decides to commercialise the IP, it shall determine, with input from the relevant creators/inventor/innovator, the most appropriate commercialisation strategy which may include but not limited to:
 - a) licensing, either exclusive, non-exclusive, sole, or cross license
 - b) assignment
 - c) formation of a commercialisation entity to which the IP is licensed or assigned in terms of this Policy
 - d) non-profit use
 - e) joint ventures
 - f) royalty free access on humanitarian or other ground
 - g) donation; and/or
 - h) various combinations of the above
3. Creators/inventors/innovators of IP which have been selected for IP protection and commercialisation by KIPRE shall provide KIPRE with all reasonable support in the assessment, protection, and commercialisation of the IP. KIPRE will ensure that reasonable efforts are made to keep the creators/inventors/innovators informed and, where appropriate, involved in the commercialisation of the IP to which they contributed.
4. KIPRE will recover all expenses incurred for the protection and licensing of each institutional creation/innovation/invention from its licensing proceeds before distributing the net proceeds remaining among the creator/innovator/inventor, their department, and the institution.
5. **Intellectual property donations:** If an individual or organisation (donor) chooses to offer to the KIPRE any form of intellectual property in which the KIPRE has no claim, the KIPRE may accept ownership or control of the intellectual property provided that:
 - a) The donor makes the offer through the KIPRE as if the IP has been created within the KIPRE.
 - b) The donor discusses provisions and makes an agreement with the KIPRE.
 - c) KIPRE may accept charitable donations of IP from an individual, governmental or non-governmental organisations.
 - d) Upon the transfer of IP rights to KIPRE, the IP will be managed in accordance with this Policy.
 - e) KIPRE may through an agreement donate IP it owns subject to relevant government approval.

6. KIPRE may acquire, co-own or sell intellectual property subject to relevant government approvals.

ARTICLE 7: PUBLICATIONS, NON-DISCLOSURE AND TRADE SECRETS

- 7.1. **Right of Publication.** The Institution encourages and supports the right of Creators to decide if and when to publish their Research results.
- 7.2. **Non-Disclosure for IP Protection.** In conjunction with the right of publication, Creators, Inventors, Owners shall be aware that premature Public Disclosure may result in loss of IP protection rights. Therefore, they are strongly encouraged to make all reasonable efforts to identify any protectable IP as early as possible and shall consult IPMO before making any Public Disclosure of potential Institution IP. The parties are encouraged to sign non-disclosure agreements.
- 7.3. **Trade Secrets.** The Institution may designate certain confidential information as a Trade Secret, owned by the Institution. In that event, all Creators will be obligated to maintain secrecy of the Trade Secret and to follow the direction for management of the Trade Secret by IPMO.

ARTICLE 8: RESEARCH CONTRACTS / AGREEMENTS

Stakeholders. For effective implementation of this IP Policy, KIPRE shall make sure that all stakeholders involved with IPs, adhere to all research regulations, agreements and procedures as follows:

Authority. KIPRE staff members, students, visiting researchers and other affiliates shall not have the right to enter into a Research Contract or Agreement with external parties on behalf of the Institution unless they are authorized to do so by an official representative of the Institution in writing.

Research Contracts / Agreements. All Research Contracts / Agreements and potential IPs shall be executed and performed in compliance with this IP Policy and other existing institutional policies and agreements.

Due Diligence. Persons acting for and on behalf of the Institution shall exercise all due diligence and consult IPMO when negotiating and signing Research Contracts, and any other Agreements that may affect institutional IP rights.

Ownership and Rights to Use. Subject to any provisions in law to the contrary, ownership and rights to use shall be agreed upon with the external entity, in accordance with the Research Contract or the Agreement.

Governing Legislations. Research Contracts or Agreements shall comply with any applicable laws and regulations

Approval. Proposed Research Contracts / Agreements and other legal statements concerning the Institution's IP rights shall comply with the provisions of this Policy. Any variance from this Policy shall be approved by the relevant authority.

Basic Principles. The IP clauses in all Research Contracts and Agreements shall be governed by the following basic principles:

1. **Concluded from the outset.** A Research Contract or Agreement shall be executed in writing and signed by the Institution and the external parties prior to the commencement of any Project and, as appropriate and without limitation, shall contain terms relating to ownership, management, cost-sharing, and use of IP arising from the Project as well as any Background IP.
2. **Background IP.** All Institution Background IP shall be properly recorded and declared prior to the commencement of a Research Contract or Agreement and belongs to the Institution. Similarly, Background IP of the external parties belongs to such party and shall be properly recorded and declared. Use of such Background IP requires express written permission.
3. **Foreground IP** (IP arising from a Research Contract or Agreement). IP generated pursuant to a Research Contract or Agreement by Staff Members, Students or Visiting Researchers and other affiliates, shall be governed by the Research Policy, any executed Agreement in relation to the specific project, and this IP Policy.
4. **Co-owned Foreground IP.**
 - a) **Terms for Co-ownership.** Co-ownership of IP generated pursuant to a Research Contract or Agreement shall be in accordance with national legislative provisions, the provisions of this policy and as may be mutually agreed by the collaborating parties.

- b) **Costs for Protecting and Maintaining Co-owned IP.** The costs for protecting and maintaining any IP rights shall be shared between the Institution and the external parties in accordance with national legislative provisions, the provisions of this policy and as may be mutually agreed by the collaborating parties.
 - c) **Serendipitous IP.** Any IP created during the course of the Research Contract or Agreement which falls outside the scope of the Research Contract or Agreement shall be co-owned by the Institution and the external parties which developed such IP, unless agreed contractually otherwise in the Research Contract or Agreement.
5. **Right of First Refusal to the IP.** The Research Contract or Agreement may include provisions giving the external parties, a right of first refusal to commercialize the IP emanating from the Research Contract or Agreement, through a license or joint venture arrangement or assignment.
6. **Publication Delay.** KIPRE allows creators, students, and researchers the freedom to publish their work. However, the Institution acknowledges that delays in publication for the purpose of initiating statutory protection of the IP are often necessary. In this regard, the Institution will agree, on a case-by-case basis, to a contractual delay in publication by Creators. Such delay will not exceed ninety (90) days from the date the IPMO is notified of the intent to publish, unless otherwise authorized by the relevant authority.

Use of the IP for Research and Teaching. In instances, where the Institution IP is licensed exclusively or assigned as part of the Research Contract or Agreement, all efforts shall be made to secure a royalty-free license for use of the IP for on-going research and teaching purposes.

ARTICLE 9: DISTRIBUTION OF REVENUES AND INCENTIVES

This article gives a framework on distribution of revenue and incentives from IPs generated assets for purposes of promoting creativity and innovation within KIPRE. The distribution of revenue and incentives shall be guided by the following principles and specifications.

9.1 The institution will offer incentives to promote creativity and innovation for generation of IPs as follows:

Recognition of IP generation and commercialisation during appraisals for purpose of promotion.

- a) Opportunities for training in entrepreneurship and professional development in the process of the IP not only after commercialisation.
- b) Technical, financial and infrastructure support towards the innovation, creation and development of the IP.
- c) Facilitate collaborative arrangements with industrial partners to secure funding for further research towards the creation and innovation of the IP.

9.2 Distribution of Revenue

General Principles

The following principles shall apply to the distribution of net revenue realised after commercialisation of an IP:

- i. Revenues received as a result of commercialisation of an IP shall be utilised to promote creativity and innovation.
- ii. The revenue distributable shall be net of all expenses incurred by the enablers and creators including but not limited to applicable taxes, all costs incurred towards protecting and commercialising the IP.
- iii. Where revenue is received by KIPRE from commercialisation of an IP arising from KIPRE activities, after sharing royalties with third parties, the net revenue shall be distributed as follows:

Category	Percentage allocation
Institution	40%
KIPRE Innovator/Creator	30%
IPMO	10%
Further Research on the Intellectual Asset	10%
KIPRE Research Fund	10%

- iv. Where IP is generated through collaborative arrangements with third parties such as communities, incentives and revenue sharing formula shall be a subject matter of the specific agreements between KIPRE and the third parties and in accordance with existing applicable laws.

- v. In the event of a dispute or uncertainty regarding the Creators'/Enablers' share of the Net IP Revenue from a specific IP, the issue shall be brought to the attention of the IPMO for resolution by the IPC.
- vi. The distribution of Net Revenues shall be made within the financial year.
- vii. All revenues and payments shall be subject to applicable government taxes.

ARTICLE 10 CONFLICTS OF INTEREST AND COMMITMENT

This article provides mechanisms for declaration and management of conflict of interest and conflict of commitment in utilisation of KIPRE resources (includes resources under the control of, or administered by KIPRE) in the generation, protection, and commercialisation of Intellectual Assets.

- 10.1 **Commitment to the Institution.** Staff members' primary commitment of time, resources and intellectual contributions shall be in line with the core functions of the Institution. Visiting researchers, affiliates and students' commitment of time and intellectual contributions will be subject to their terms of appointment or agreements with KIPRE.
- 10.2 **Best Interests of the Institution.** Staff members, visiting researchers, affiliates and students have a primary professional obligation to act in the best interests of the Institution.
- 10.3 **Agreements with External Parties.** It is the responsibility of all staff members, visiting researchers, affiliates, and students to ensure that their agreements with external parties do not conflict with the IP rights.
- 10.4 **Disclosure of Conflict of Interest (COI) and Conflict of Commitment (COC).** KIPRE shall provide mechanisms for staff members, visiting researchers, affiliates, and students to disclose all potential and existing COI or COC to the IPMO.

ARTICLE 11: DISPUTE RESOLUTION

Any disputes or questions of interpretation arising under this Policy shall in the first instance be referred to IPMO for consideration and mediation by the IPC.

- 11.1 If the matter is not resolved by the IPC within two (2) months, then the dispute or question of interpretation shall be referred to the institution's mediation mechanism.
- 11.2 Any party aggrieved by the decision of the IPC shall have a right of appeal to the Director General within thirty (30) calendar days.
- 11.3 All the disputes shall be addressed to the Board through the DG within thirty (30) days
- 11.4 The Board shall resolve the dispute within 90 days and decision communicated to the officer within 3 (three) months from the decision date
- 11.5 If the disputes are not resolved internally, they could be escalated to other IP related forums or platforms mandated by law to handle similar issues.

ARTICLE 12: TRADITIONAL KNOWLEDGE AND GENETIC RESOURCES

This article provides guidelines on access, sustainable utilisation and sharing of benefits of IPs derived from Traditional Knowledge (TK) and associated Genetic Resources (GR). KIPRE shall recognise the holders/providers/owners of TK and associated GR.

- 12.1 TK and associated GR shall be accessed in accordance with the requirements of relevant laws.
- 12.2 The Institution shall make provision in all Research Contracts concluded for the protection of any IP which may arise from the use of TK and associated GR.
- 12.3 Where feasible, benefit sharing shall be guided by prior informed consent and mutually agreed terms signed between KIPRE and holders/providers/owners.
- 12.4 Moral rights of the owners of TK will be recognised and respected as per the relevant laws.

ARTICLE 13: REVIEW AND AMENDMENT

- 13.1 This policy shall be reviewed after every three (3) years to comply with emerging issues and changes in legal frameworks.
- 13.2 This Policy may be amended from time to time subject to necessary approvals. In this case:

- i. all IP disclosed on or after the effective date of such amendment shall be governed by the Policy as amended,
- ii. all IP disclosed prior to the effective date of the amendment shall be governed by the Policy prior to such amendment,

provided that the provisions of the Policy shall apply to all IP licensed or otherwise commercialised on or after the effective date of any such amendment regardless of when the IP is disclosed.

ARTICLE 14: GOVERNING LAWS

This policy shall be interpreted in accordance with the Laws of Kenya and in a manner consistent with other relevant policies.

ARTICLE 15 ADOPTION AND IMPLEMENTATION

KIPRE Intellectual Property Policy shall become effective upon adoption and approval by the Board of Directors.

REFERENCES

1. Anti-Counterfeit Act (No. 13 of 2008)
2. Biosafety Act (No. 2 Of 2009)
3. Copyright Act (CAP. 130)
4. Data Protection Act (No.24 of 2019)
5. Environmental Management and Coordination Act (No. 8 of 1999)
6. Forest Conservation and Management Act (No. 34 of 2016)
7. Guidelines for Customization of the WIPO Intellectual Property Policy Template for Universities and Research Institutions, Version January 29, 2019
8. Industrial Property Act (No. 3 of 2001)
9. Intellectual Property (IP) Valuation Manual: A Preliminary Guide. Asia Pacific Economic Cooperation (APEC) Intellectual Property Experts Group. 2018, January.
https://www.apec.org/docs/default-source/Publications/2018/4/IP-Valuation-Manual/218_CTI_IP-Valuation-Manual.pdf

10. NAGOYA Protocol on access to genetic resources and the fair and equitable sharing of benefits arising from their utilisation to the convention on biological diversity. 2011. ISBN: 92-9225-306-9
11. National Museum of Natural History, Smithsonian Institution Collections Management Policy Rev. December 13th, 2017.
12. Protection of Traditional Knowledge and Cultural Expressions Act (No. 33 of 2016)
13. Science, Technology and Innovation Act (No. 28 Of 2013)
14. Seeds and Plant Varieties Act (CAP. 326)
15. The Constitution of Kenya, 2010
16. Trade Marks Act (CAP. 506)
17. Universities Act (No. 42 of 2012)
18. Wildlife Conservation and Management Act (No. 47 of 2013)
19. WIPO Guidelines on Developing Intellectual Property Policy for Universities and Research Institutions in African Countries. WIPO Publication No. 848 (E). ISBN 92-805-1094-2.